

MOTION TO MODIFY CHILD SUPPORT PURSUANT TO MCL 552.517

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

MOTION TO MODIFY CHILD SUPPORT

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court pursuant to MCL 552.517 for an order modifying the child support obligation in this matter. In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

Since the entry of the most recent child support order, there have been material changes in circumstances that warrant modification of child support. Specifically, the current support calculation does not accurately reflect: (1) the parties' current incomes; (2) the actual parenting time arrangement (or lack thereof); (3) the Michigan Child Support Formula (MCSF) requirements; and (4) the equities of this case, where Plaintiff has been wrongfully denied parenting time for 571+ days while continuing to pay support.

II. LEGAL STANDARD

A. MCL 552.517 -- Modification of Support

MCL 552.517(1)(a) provides that a support order may be modified if "the court determines that a change of circumstances has occurred that causes the current support amount to be unreasonable and unjust." The Friend of the Court is required to review support orders periodically, but either party may also petition for modification.

B. Change of Circumstances

A change of circumstances sufficient to warrant modification exists when the current support amount deviates by more than 10% from the amount that would result from application of the Michigan Child Support Formula to the parties' current circumstances. MCL 552.517(1)(a); *Stallworth v. Stallworth*, 275 Mich App 282 (2007).

C. Michigan Child Support Formula (MCSF)

The Michigan Child Support Formula (2021 edition, effective January 1, 2021, and as subsequently updated) provides the framework for calculating child support obligations. The formula considers: (1) each parent's income; (2) the number of overnights with each parent; (3) childcare costs; (4) health insurance costs; and (5) other relevant factors.

III. CHANGED CIRCUMSTANCES

A. Change in Parenting Time

The most significant change in circumstances is the drastic alteration of parenting time. The current support order was presumably calculated based on a parenting time arrangement that included meaningful time with Plaintiff. Since August 8, 2025, Plaintiff has had essentially zero overnights with the children -- a 571+ day period of complete denial.

Under the MCSF, parenting time (measured in overnights) is a critical input to the support calculation. A change from the assumed number of overnights to zero overnights represents a fundamental change in the calculation inputs.

However, this change was not voluntary on Plaintiff's part -- it was imposed by ex parte court orders that Plaintiff contends were improper. Plaintiff should not be penalized in the support calculation for parenting time that was wrongfully denied to him.

B. Income Changes

Plaintiff's income circumstances have changed since the last support order due to:

1. Impact of 59+ days of incarceration on employment and earning capacity
2. Costs incurred in defending against serial unsubstantiated allegations
3. Legal costs of this litigation as a pro se party
4. Emotional and psychological toll affecting work performance

Plaintiff requests that the Court order updated income disclosure from both parties to ensure an accurate calculation.

C. Defendant's Income

Upon information and belief, Defendant's income and financial circumstances have changed since the last support order. Plaintiff requests that the Court order full financial disclosure from Defendant, including:

1. Current employment income (W-2 and/or 1099)
2. Any additional sources of income
3. Benefits received (government assistance, family support, etc.)
4. Current expenses related to the children

IV. APPLICATION OF THE MICHIGAN CHILD SUPPORT FORMULA

A. Income Determination

The MCSF requires determination of each parent's "net income" as defined by the formula. This includes:

1. **Gross income:** All income from all sources, including wages, salaries, commissions, bonuses, overtime, tips, self-employment income, interest, dividends, rental income, retirement income, and any other income
2. **Deductions:** Taxes, mandatory retirement contributions, union dues, and other allowable deductions
3. **Net income:** Gross income minus allowable deductions

Plaintiff requests that the Court order both parties to submit updated Uniform Child Support Orders (UCSO) and verified income information.

B. Parenting Time Credit

The MCSF provides a credit for parenting time based on the number of annual overnights each parent has with the children. The formula recognizes that parents who have the children in their care for more overnights incur greater direct costs.

Plaintiff requests that the support calculation be based on the parenting time schedule that should be in effect -- i.e., the schedule that would exist but for the improper ex parte orders -- rather than the current zero-overnight arrangement that was wrongfully imposed.

In the alternative, if the Court bases the calculation on actual overnights, Plaintiff requests a retroactive adjustment once parenting time is restored to credit Plaintiff for the period during which he was wrongfully denied overnights.

C. Imputed Income

If Defendant is voluntarily unemployed or underemployed, the Court should impute income to Defendant at a level consistent with her education, skills, and employment history. MCL 552.605(2); MCSF 2.01(G). The MCSF provides that "if the court finds that a parent is voluntarily unemployed or underemployed, the court may impute income to that parent."

Plaintiff requests that the Court investigate whether Defendant is employed at a level consistent with her capacity and, if not, impute income accordingly.

D. Childcare and Healthcare Costs

The MCSF requires allocation of childcare and healthcare costs between the parents. Plaintiff requests:

1. Verification of actual childcare costs incurred by Defendant
2. Verification of healthcare coverage and costs for the children
3. Proper allocation of these costs per the MCSF formula
4. Credit to Plaintiff for any healthcare coverage he provides or could provide

V. EQUITABLE CONSIDERATIONS

A. Support During Denied Parenting Time

Plaintiff has continued to pay child support during the 571+ day period when he was denied all parenting time. While Plaintiff acknowledges his support obligation, the equities of this situation -- where one parent is denied access to the children while being required to pay support -- warrant careful consideration.

Plaintiff does not seek to avoid his support obligation. He requests that the calculation accurately reflect all relevant circumstances, including the wrongful denial of parenting time.

B. Costs Incurred Due to Defendant's Misconduct

Plaintiff has incurred substantial costs as a result of Defendant's misconduct, including:

1. Costs of responding to serial false reports
2. Lost income due to 59+ days of incarceration
3. Filing fees and litigation costs
4. Emotional and psychological counseling costs

These costs should be considered in the equitable determination of support.

C. Retroactive Modification

MCL 552.603(2) provides that a support order may be modified retroactively. Plaintiff requests retroactive modification to the date of the filing of this Motion, or to the date when the change of circumstances occurred, whichever is earlier.

VI. MICHIGAN CHILD SUPPORT FORMULA -- DETAILED APPLICATION

A. Base Support Calculation

Under the MCSF, the base support obligation is calculated as follows:

1. **Determine each parent's net income** per MCSF 2.01
2. **Calculate the total support need** based on the number and ages of the children using the MCSF income shares table
3. **Allocate the obligation** between parents proportional to their respective net incomes
4. **Apply the parenting time offset** based on the number of annual overnights per MCSF 3.02
5. **Calculate the final support amount** after all adjustments

B. Parenting Time Offset -- MCSF 3.02

The parenting time offset is critical in this case. Under MCSF 3.02:

- * The offset recognizes that parents incur direct costs when children are in their care
- * The offset increases as the number of overnights increases
- * At zero overnights (the current wrongful arrangement), Plaintiff receives no offset -- an unjust result given that the zero-overnight arrangement was imposed against Plaintiff's will

Plaintiff argues that the support calculation should either:

1. **Use the parenting time schedule that should be in effect** -- i.e., the schedule prior to the improper ex parte orders -- to avoid penalizing Plaintiff for a situation he did not create; or
2. **Credit Plaintiff retroactively** once parenting time is restored, to recoup the excess support paid during the wrongful denial period

C. Childcare Cost Allocation -- MCSF 3.05

The MCSF requires that net childcare costs be allocated between parents proportional to their net incomes. Plaintiff requests:

1. Verification of Defendant's actual childcare expenses
2. Documentation that childcare is necessary for employment or education
3. Proper allocation per the formula

D. Healthcare Cost Allocation -- MCSF 3.03-3.04

Healthcare costs, including insurance premiums and uninsured medical expenses, must be allocated per the MCSF. Plaintiff requests:

1. Identification of which parent provides healthcare coverage
2. Allocation of the premium cost attributable to the children
3. A mechanism for sharing uninsured medical expenses
4. Credit to Plaintiff if he provides or can provide more cost-effective coverage

E. Tax Considerations

The support calculation should reflect current tax law:

1. Federal and state tax withholding based on current filing status
2. Child tax credit allocation
3. Any dependency exemption agreement between the parties

VII. FRIEND OF THE COURT REVIEW

A. Mandatory Review

MCL 552.517b requires the Friend of the Court to review support orders periodically to determine whether modification is warranted. Plaintiff requests that:

1. The Friend of the Court conduct an immediate review of the current support order
2. Both parties be required to submit current financial information
3. The Friend of the Court apply the current MCSF to the parties' current circumstances
4. The Friend of the Court issue a recommendation within 30 days

B. FOC Calculation

Plaintiff requests that the Friend of the Court prepare a detailed calculation showing:

1. Each parent's current net income

2. The base support obligation
3. The parenting time offset (using the appropriate parenting time schedule)
4. Childcare and healthcare allocations
5. The recommended support amount
6. Any recommended retroactive adjustments

VI. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **ORDER** both parties to submit updated income information and Uniform Child Support Orders;
2. **RECALCULATE** child support in accordance with the Michigan Child Support Formula based on current incomes and the parenting time schedule that should be in effect;
3. **CREDIT** Plaintiff for parenting time that was wrongfully denied in calculating the support obligation;
4. **IMPUTE** income to Defendant if she is voluntarily unemployed or underemployed;
5. **ORDER** full financial disclosure from Defendant;
6. **MODIFY** the child support order retroactively to the date of changed circumstances;
7. **ORDER** the Friend of the Court to conduct a support review;
8. **GRANT** such other and further relief as this Court deems just and equitable.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion to Modify Child Support upon all parties of record via [electronic filing through MiFILE / first-class mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors